

TITLE: Sources Sought (SS)-- State Licensed and Nationally Accredited Secure Care and Heightened Supervision Facility (HSF) Beds for the Administration for Children and Families (ACF), Office of Refugee Resettlement (ORR), Unaccompanied Alien Children Bureau (UACB)

1.0 PURPOSE

This is a Request for Information ONLY and is for market research purposes. This is NOT a solicitation for proposals, proposal abstracts, or quotations. The government is seeking capability statements to obtain knowledge and information on potential vendor capability, capacity, and interest for project planning purposes. This is for informational purposes only. No questions will be answered.

2.0 BACKGROUND

The Office of Refugee Resettlement (ORR), under the Administration for Children and Families (ACF), is responsible for the care and placement of unaccompanied alien children (UAC) referred by federal agencies, most often the Department of Homeland Security (DHS). A UAC is a child who has no lawful immigration status in the United States (U.S.); has not attained 18 years of age; and, has no parent or legal guardian in the U.S. or no parent or legal guardian in the U.S. who is available to provide care and physical custody (defined at 6.U.S.C 279(g)(2)). In most cases, UAC are apprehended by DHS immigration officials and transferred to the care and custody of ORR. ORR funds a network of care provider facilities to assume the physical custody of UAC. A care provider facility is any physical site that houses one or more UAC in ORR custody and is operated by an ORR-funded program that provides residential services for UAC. ORR takes into consideration the unique nature of each child's situation and applies child welfare principles when making placement decisions that are in the best interests of each child and promptly places UAC in the least restrictive settings (care provider facilities). Placement decisions take into consideration danger to self, danger to the community, and risk of flight.

ORR has two levels of care for UAC who are assessed to be a danger to themselves or others, have a criminal history, or require close supervision, secure care and heightened supervision care (also known as staff secure).

Heightened supervision facilities maintain stricter security measures than non-restrictive care providers (e.g., shelters), such as intensive staff supervision, in order to provide supports, manage problem behavior, and prevent children from running away. ORR only places UAC in HSF care if they require close supervision, but do not require placement in a secure facility. Placement in HSF care is based on clear and convincing evidence the child:

1. Has been unacceptably disruptive to normal functioning of a shelter care provider facility and transfer is necessary to ensure welfare of the child or others;
2. Has displayed a pattern of severity of behavior, prior to entering ORR custody or while in ORR care, that requires increased supervision by trained staff; and
3. Has non-violent criminal or delinquent history not warranting placement in a secure facility, but which evidences a behavioral concern that requires an increase in supervision above what would be provided in a non-restrictive facility.

Secure facilities are for children who require the strictest level of supervision. Secure facilities have a secure perimeter, major restraining construction inside the facility, and procedures typically associated

with correctional facilities. Placement in a secure facility is based on clear and convincing evidence the child:

1. Poses a danger to self or others; or
2. Has been charged with or convicted of a criminal offense or is chargeable with such an offense.

A Secure Care facility has separate accommodations for minors, in a physically secure structure with staff who are able to control violent behavior. ORR uses a Secure Care facility as the most restrictive placement option for UAC who pose a danger to self or others or has been charged with having committed a criminal offense. A child may not be placed in a secure facility solely based on a finding that the child poses a danger to self. A Secure Care facility is not defined as a standard program or shelter (see 45 CFR 410.1001 Secure facility, and also UAC Policy Guide, Guide to Terms).

In cases where UAC are determined to meet criteria for placement in a secure or HSF care setting, ORR utilizes qualified care provider facilities who are experienced and operational state-licensed and nationally accredited facilities for minors with proven success in the delivery of comprehensive quality programming for these populations.

The government is seeking industry information on the availability of existing state-licensed and nationally accredited secure care and HSF residential care providers for minors located within the contiguous United States, with capacity to provide residential care for 30 secure and 20 HSF placements. The need is immediate, as such, a ready-site operational with capacity to ramp up as soon as possible upon a contract award, and no longer than 120 calendar days is desired. Interested care providers who operate in a state where licensing is not available must be able to demonstrate existing experience and capacity to successfully operate secure and HSF programs equivalent to the state licensing standards (see 45 C.F.R. 410.1302(a)). Any proposed residential care facility and programming must satisfactorily describe their capacity to meet all applicable federal, state, and local regulations for provision of residential secure care and HSF care for minors, including state-licensing requirements and applicable ORR regulations.

The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to provide residential secure placements for UAC as defined in ORR UAC Bureau Policy and Field Guidance.

<https://acf.gov/orr/policy-guidance/unaccompanied-children-bureau-policy-guide>

3.0 GOAL

The goal of this SS is to identify availability of state licensed, nationally accredited secure and HSF care facilities capable and interested in providing 30 secure care residential beds for UAC who meet the criteria for placement in a secure care setting; and state licensed, nationally accredited heightened supervision facility (HSF) care facilities (also known as Staff Secure) who are capable and interested in providing 20 HSF residential beds for UAC who meet the criteria for placement in HSF care.

The contractor shall include in their Capability Statement:

1. Description of your organization's current and/or past experience (within the last five years) successfully operating state licensed and nationally accredited residential facilities for minors, including description of existing facilities and programming with capacity to provide 30 secure and 20 HSF beds; and/or description of proposed facility locations, partners, and capacity to operate.

For each facility type, please provide:

- Facility details: Location(s), capacity, population served, and length of operation.
 - If secure and HSF care would not be available on a same campus; include a description of locations for the 30 secure and 20 HSF beds and how the campuses are associated; description of cohesive geographic location; and how locations can coordinate services.
- Licensing and accreditation status: Current state licensing and national accreditation (specify accrediting body, e.g., Joint Commission, COA, etc).
- Performance outcomes: key metrics demonstrating successful operation (e.g., safety records, program completion rates, compliance history).
- Timeline with which respective beds can be available for new admissions upon an award; in cases of longer than 120 calendar days of contract award provide detailed explanation of the challenges and roadblocks.
- Compliance history: A complete statement disclosing any past or current issues with state licensing or national accreditation within the last five years, including:
 - Nature and date of the issue(s)
 - Current status (resolved, pending, ongoing)
 - Corrective actions taken and resolution outcomes
 - Any conditions, restrictions, or monitoring requirements currently in place.

Note: Disclosure of licensing or accreditation issues will not automatically disqualify your organization's capacity. However, failure to fully disclose licensing or accreditation issues may result in disqualification from further consideration.

2. Describe your organization's current and/or recent past experience (within the last five years) successfully operating federal programs and contracts.
3. **The Government anticipates a Firm-fixed Unit Price per bed contract structure where only 'occupied' beds are invoiced and paid.** Please provide a detailed breakdown of the level of care per diem (fixed daily bed rate) funding policy. Specifically, information on reimbursement structure for occupied beds and methodology for ensuring the full capacity of 30 secure and 20 HSF beds e.g., associated daily rates and what is included per daily bed rate; as well as, methodology for funding unoccupied or "held" beds.

Programming will:

1. Provide humane and secure environment to UAC between ages of 13–17 who meet criteria for secure care placement in a state-licensed facility; and requires the following staff ratios.
 - One (1) on-duty staff for every four (4) children during waking hours;
 - One (1) on-duty staff for every 12 children during sleeping hours;
 - One (1) case manager for every six (6) children;
 - One (1) clinician for every six (6) children; and

- Two (2) staff present for each one (1) child during secure transport outside the facility; at least one (1) staff present must be of the same gender as the child being transported.
2. Maintain capacity for timely admission of UAC within 72 hours of notification from ORR.
 3. Ensure provision of comprehensive services, required under 45 CFR §§ 410.1302, 410.1306, 410.1307, 410.1310, 410.1311, and the UAC Policy Guide.
 4. Employ policies and service plans to avoid rejection or ejection of a UAC who meets criteria and is referred for placement.
 5. Provide comprehensive services including UAC assessment, diagnosis, treatment, education, nutrition, recreation, religious access, acculturation services, discharge planning, transfer recommendations to less-restrictive settings, and safe release recommendations to a vetted sponsor, required under relevant sections of the UC Foundational Rule and the UAC Policy Guide.
 6. Facility and operations must be compliant with all applicable federal, state, and local regulations for provision of residential secure care for juveniles.
 7. Facility (indoor and outdoor) and operations must have capacity to serve up-to-30 Secure Care beds and 20 HSF beds for UAC which operates program services 24/7, 365 days per year.

4.0 LOCATION OF SERVICE

Secure Care and HSF facility and programming will be performed within the contiguous United States, at the contractor location(s), including any contractor site designated to provide physical custody and direct care to UAC who meet criteria for Secure or HSF care. Secure and HSF levels of care shall be provided within a cohesive geographical location to ensure continuity of care.

5.0 ANTICIPATED PERIOD OF PERFORMANCE

One 12-month base period, with four 12-month optional periods based on the needs of the Government.

6.0 IMPORTANT CONSIDERATIONS

The Government is interested in potential vendors:

1. With experience in providing residential secure and HSF (also recognized as staff secure) programs for youth, similar to the services as described in 45 CFR part 410.
2. With ready or near-ready 30-bed capacity for secure and 20-bed capacity for HSF including facilities with expected ramp-up not to exceed 120 calendar days.
3. Currently operating state licensed and nationally accredited secure care and HSF programs; or programs with extensive past experience and proven success operating state licensed and nationally accredited residential secure and HSF programs with staffing and ramp up capacity to accept admissions not to exceed 120 calendar days upon a contract award.

Approximately 10 calendar days after responses are due from this Sources Sought, ORR intends to hold a live virtual follow-up roundtable discussion with industry to further gather industry's input into ORR's requirement and industry's perspectives. Additional information regarding this event will be posted on this notice.

Notes:

1. Potential offers with interest and capability in providing only programming or only the facilities portion of this requirement are encouraged to respond; and encouraged to describe any existing partnerships for secure and HSF programming and/or plans to partner.
2. The Government is most interested in vendors with immediate capacity or capable of a timeline not to exceed 120 calendar days to provide admissions and care for the full capacity.

Capability Statement Inquiries/Submission Instructions:

1. No phone calls will be accepted. However, written questions may be submitted to the Contract Specialist, Ijada Fields at: Ijada.Fields@hhs.gov and Contract Officer, Emily Graham at Emily.Graham@hhs.gov. All questions must be received by 10:00 a.m. ET on Friday, 04/03/2026.
2. The Capability Statement shall be limited to 10 double-spaced pages total. The pages will have 1-inch margins, and using not less than 12-point font, Times New Roman.
3. Tables and figures can be Times New Roman and no smaller than 9-point font. The total number of tables and figures shall be limited to 12. The Cover Letter, Tables of Contents, and Technical Appendix are not included in the page count.
4. Capability Statements shall be submitted via email to the Contract Specialist, Ijada Fields at: Ijada.Fields@hhs.gov and Contract Officer, Emily Graham at: Emily.Graham@hhs.gov, by 10:00 am ET on Friday, 04/10/2026.

III. Disclaimer and Important Notes

This notice does not obligate the Government to award a contract or pay for the information provided in response. The Government reserves the right to use information provided by the respondents for any purpose deemed necessary and legally appropriate. Any organization responding to this notice should ensure that its response is complete and sufficiently detailed. Information provided will be used to assess tradeoffs and alternatives available for the potential requirement and may lead to the development of solicitation. Respondents are advised that the Government is under no obligation to acknowledge receipt of the information received or provide feedback to respondents with respect to any information submitted. Any solicitation resulting from the analysis of information obtained will be announced to the public in System for Award Management (SAM) in accordance with FAR Part 5. However, responses to this notice will not be considered adequate responses to a solicitation.

Confidentiality

No proprietary, classified, confidential, or sensitive information should be included in your response. The Government reserves the right to use any technical information received in response to this Sources Sought Notice in any resultant solicitation(s).